

INVITATION TO RFP DOCUMENTS

PART II

CONDITIONS OF RFP

PROPRIETARY - TM TECHNOLOGY SERVICES SDN. BHD. (200201003726(571389 - H))

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CONDITIONS OF RFP

1. SCOPE OF RFP

TM Technology Services Sdn, Bhd. (hereinafter called "TM") is hereby inviting for:

CLOSED REQUEST FOR PROPOSAL (RFP) FOR TM & CRADLE BIG 2.0 PROGRAMME: DESIGN AND DEVELOPMENT OF A PLATFORM TO ENHANCE FIBRE INFRASTRUCTURE RESILIENCE FOR TM TECHNOLOGY SERVICES SDN BHD

RFP Reference: **NAE/2026/RFP/01/A1G/BIG**

- 1.1 The offered Equipment/Works/Services shall be as per the proposal during the demonstration and presentation to TM, if applicable.
- 1.2 The Equipment/Works/Services shall include but not limited to the Supply, Delivery, Customization, Configuration, Installation, Integration, Testing, Commissioning, Training and Maintenance Support of the offered Equipment/Works/Services to be performed.
- 1.3 The offered Equipment/Works/Services shall in all respects comply with the specifications as detailed in the **Part IV [Terms and Conditions of Agreement]** and **Part V [Technical Specifications]** of the RFP Documents.

1A. RFP EVALUATION PROCESS

- 1A.1 The high level RFP evaluation process is depicted as figure below:

Phase 1	Phase 2	Phase 3	Phase 4
<u>Technical and Commercial Evaluation</u> - Submission of overall RFP proposal (Commercial and Technical proposal) with complete supporting documents and evidence based on the Technical Specifications. - Proposer shall be invited for the following: a) Clarification session (Commercial and Technical) b) BOQ challenge session, and c) Pitching.	<u>Final Price Submission</u> Final Price Submission based on finalized BoQ <i>Note: Phase 2 may be initiated during Phase 1 after completion of BoQ challenge</i>	<u>LOI and negotiation</u> - Negotiation with selected Proposer/s. <i>Notes:</i> i. LOI = Letter of Intent	<u>Letter of Award (LOA)</u> LOA followed by definitive agreement shall be issued.

- 1A.2 The Proposer's Subject Matter Expert are required to attend the clarification, BOQ challenge and pitching session during RFP Evaluation.

- 1A.3 TM reserves the right to change the above RFP evaluation process without any obligation to state any reason whatsoever.

2. DEFINITIONS

Words and expressions used herein, unless expressly provided to the contrary, shall bear the same meanings as defined or used in the Instructions to Proposers, Terms and Conditions of Agreement and the Technical Specifications.

3. PRICES

- 3.1. There shall be no price escalation nor any claim for price escalation over the Contract Period or during any extension of the Contract Period.
- 3.2. The Proposer is prohibited from cross-subsidising the prices (but not limited to the items and the allocation of Bills of Quantities (BoQ)) in his Proposal.
- 3.3. The Proposer acknowledges that TM reserves the absolute right to award the RFP either partially or in full (but not limited to the Agreement Value, items, quantities and others which related to the pricing and offered items) and as stipulated under **Clause 30.2** of this **Part II – Conditions of RFP**, TM has the right to enter into a relationship with multiple successful Proposer(s).
- 3.4. TM reserves the right to award either one (1) or more deliverables to one (1) or more successful Proposer(s) without giving any reason whatsoever.

4. TAXES AND DUTIES

- 4.1. The Proposer shall be required to declare in the RFP exercise, where applicable, the Royal Malaysian Customs Tariff Code of the Works/Services including its associated accessories offered and the corresponding taxes and duties applicable in the Proposal.
- 4.2. The prices quoted shall be inclusive of any applicable taxes (not limiting to Sales and Service Tax) or charges that may be incurred or imposed in respect of the Items in accordance with the laws of Malaysia. The prices quoted shall be inclusive of all taxes or charges that may be incurred or imposed in respect of the Works/Services in accordance with the laws of Malaysia. Such prices shall be held firm without any price adjustment during the Agreement Period.
- 4.3. Sales and Services Tax ("SST")
All prices shall be subjected and inclusive of SST which is reasonably costed (and not profiteering) into the updated list of pricing due to SST implementation. For avoidance of doubt, the Proposer that are registered under the Sales Tax Act 2018 shall be charged Sales Tax and for Proposer that are licensed under Service Tax Act 2018 shall be charged Service Tax.
- 4.4. Fair Tax Liabilities
Any taxes, duties and fees levied on the Proposer or TM shall be borne by the parties respectively in accordance with the applicable tax law /regulation in the territory.

- 4.5. If withholding taxes are payable by the Proposer to the Government, TM reserves the right to withhold a portion of money due to the Proposer in compliance with the requirements of the Inland Revenue Board or other governmental regulations.

5. GOVERNMENT OF MALAYSIA'S POLICY AND ORDERS

All items, components, materials or goods used for the Equipment/Works/Services and/or execution of the Equipment/Works/Services shall conform to the Malaysian Government's expressed policies on importation/exportation into/out of Malaysia. TM reserves the right to reject any Equipment/Works/Services that do not comply with the said policies. All the costs thereof, incidental or otherwise, shall be borne by the Proposer.

6. PROPOSER TO INFORM HIMSELF FULLY

The Proposer shall be deemed to have inspected and examined all the documents which comprise the Invitation to RFP Documents and to have obtained at his own expense any additional information which he may consider necessary for the completion of his RFP. Further, he shall have satisfied himself as to the correctness and sufficiency of his RFP.

7. ACCEPTANCE, REJECTION OR DISQUALIFICATION OF RFP

- 7.1. TM reserves the right at its absolute discretion and without stating any reason whatsoever, to accept the whole RFP or any part thereof or to reject any or all RFPs received in response to the Invitation to RFP Documents.
- 7.2. TM shall not allow any Proposer, which has been suspended or blacklisted or bankrupt/wound up or has been found guilty for any offence by any courts of law or have any legal suit taken against them which may affect their transaction or by them (if by them and the party which the suit is taken against is TM) or have an affirmative status or affiliation with TM group's external auditors or a restriction is recently being imposed from any countries to participate in this RFP exercise.
- 7.3. TM shall have the absolute right to disqualify any Proposer if the Proposer is being suspended or blacklisted or bankrupt/wound up or has been found guilty for any offence by any Courts of Law or have any legal suit taken against them which may affect their transaction or by them (if by them and the party which the suit is taken against is TM) or have an affirmative status or affiliation with TM group's external auditors or a restriction is recently being imposed from any countries during or after participating in this RFP exercise and the Proposer bid shall be null and void. The Proposer shall provide a declaration to TM by completing the Declaration of Independency from Suspension, Blacklisting, Bankruptcy, Legal Suit, Offence Status or Affiliation with TM Group's External Auditors and Restriction cum Declaration On Related Party Transaction (RPT)/Recurrent Related Party Transaction (RRPT) as provided in **Appendix H of Part III** of the RFP Documents.
- 7.4. If TM reasonably believes that the Proposer has made false or misleading claims or statements, or if the Proposer received improper assistance from TM's personnel in the preparation of his Proposal, TM reserves the right in his absolute discretion to cease further consideration of the Proposal and to exercise any or all legal remedies that are available to TM in response to such actions of the Proposer.

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- 7.5. TM shall at all material time reserves the right to return and/or reject and/or automatically disqualify any or all RFP submissions by the Proposer without any obligation to state any reasons whatsoever.

7.6. Proposer's Covenants

The Proposer hereby covenants that the Proposer shall be the party signing the Contract with TM if the Proposer is successfully awarded the RFP.

Unless otherwise decided by TM, the Proposer is not permitted to propose or engage another third party, agent, partner or distributor to execute the Contract with TM. Non-compliance of this sub-clause 7.6 may result in the rejection or disqualification of the Proposer from this RFP exercise.

The Proposer shall not in any event, after submission of RFP Document change the Proposal submitted and TM in its discretion, shall reserve the right to disqualify or reject the Proposer's proposal in the event of the abovementioned occur.

8. SOURCE OF SUPPLY

The Proposer shall state the country of origin and the registered name and address of the Principal of the offered Equipment in his RFP.

9. VALIDITY OF RFP

The Proposer's offered prices shall be valid for **nine (9) months** from the RFP Closing Date.

10. QUANTITY

The estimated required quantities for the Works/Services are detailed in the Price Schedule. However, the said quantities are only estimation and TM shall not be bound to purchase any or all of the aforesaid estimated quantities or any. TM shall not be liable for any cost incurred by the successful Proposer to meet such estimated requirement. TM reserves the right to vary the quantities and/or types of Equipment and/or Works to be ordered.

11. FINANCING

The Proposer is invited to make propositions for financing the purchase of the offered Equipment/Works/Services. The following details shall be provided by the Proposer:

- (a) Type of facility;
- (b) Currency;
- (c) Currency for Repayment;
- (d) Expiry date of offer (this date should correspond with the RFP Validity Period)

The Proposer shall also specify any guarantee required for the financing.

12. DOCUMENTATION

The Contract shall not be regarded as completed until all documentation called for, either in the

Contract or in any subsequent instruction, has been provided by the successful Proposer to TM. The cost of any such document or certification shall be borne by the successful Proposer unless otherwise specified in the Contract.

13. INSTALLATION TOOLS AND TEST EQUIPMENT (IF APPLICABLE)

- 13.1. If required in the Specifications, the Proposer shall provide information on Tools and Test equipment required for the Equipment/Works/Services offered as detailed in the Specifications. The Proposer shall quote separately his unit prices for these items in the Price Schedule.
- 13.2. All tools and test equipment used for all tests, including Acceptance Tests and maintenance services, shall be calibrated to the applicable standards issued by a certified calibration agency including but not limited to SIRIM, IEEE and ITU-T.

14. REPAIR FACILITIES (NOT APPLICABLE)

15. TRAINING

- 15.1. The Participant may be required to provide Training to TM's personnel, maintenance contractors and/or users at the price quoted in the Price Schedule. In such event, the Participant shall indicate and stipulate the type and nature of Training that is necessary to meet the requirements specified in the Scope of Services/Technical Specifications:
- 15.2. Where formal Training is not necessary, the Participant shall supply to TM free of charge all technical and operational handbooks and manuals and any other relevant literature, which are necessary for TM to effectively, utilise and/or operate the Services offered.
- 15.3. Failure on the part of the Participant to provide the necessary information or to respond positively shall adversely affect TM's consideration of the Participant's offer.

16. BRIBERY, CORRUPTION, FRAUDULENT ACTS AND INDUCEMENT

- 16.1. Proposer hereby represents, warrants and undertakes that it shall comply, and shall procure that its directors, employees, or a person who performs services on behalf of the organization in connection to this RFP exercise shall comply with the following:
 - (a) comply with all applicable laws in Malaysia and, to the extent that it is relevant, any other jurisdiction in respect of bribery, corruption and/or fraudulent acts in the course of performing and/or carrying out its obligations under and/or in connection with this RFP exercise;
 - (b) put in place and implement its own anti-bribery and anti-corruption policies and procedures including adequate measures, controls and accurate records of transactions so as to ensure compliance with such applicable laws; and
 - (c) comply with each TM's anti-corruption policy and procedures and/or any other relevant anti-corruption policy and procedures as may be amended from time to time in the course of performing and/or carrying out its obligations under and/or in connection with this RFP exercise.

16.2. Notwithstanding any provision of this RFP, TM shall have the right to terminate this RFP exercise with immediate effect by written notice to the Proposer if:

- (a) any representation or warranty or undertaking in Clause 17.1 above by the Proposer is found and/or is known to be untrue or misleading;
- (b) the Proposer, its directors, employees, or a person who performs services on behalf of the organization in connection to this RFP exercise breach of any of the terms set out in this clause; and/or
- (c) the Proposer, its directors, employees, or person who performs services on behalf of the Proposer in connection with this RFP exercise is found to have committed bribery, corruption and/or fraudulent acts prohibited under the applicable laws in Malaysia and, if applicable, any other jurisdiction in the course of performing and/or carrying out its obligations under and/or in connection with this RFP exercise.

and, the Proposer shall be liable for losses, damages, costs and expenses incurred by TM as a result of such breach under this clause and/or termination of this RFP exercise ("Losses"). The Proposer shall indemnify and render TM harmless from such Losses and to the extent such Losses are actual damages.

16.3. In pursuant to Clause 17 herein, the Proposer is required to submit a complete TM Integrity Pledge as provided under **Appendix L** of **Part III** of the RFP Documents together with their RFP submission.

17. COVENANT ON ANTI-COMPETE

TM expects that all the Proposer shall fully observe and adhere with the requirements of the Competition Act, 2010. In any event, if TM has any reason to believe that the Proposer has breached such requirements, TM shall have absolute right to exclude, disqualify, reject from further consideration and/or exercise any other remedies available at law, RFP documents which have been compiled:

- (a) by Proposer (including their officers, employees, agents and subcontractors) who engage in any collusive offering, anti-competitive conduct or any similar behaviour with any other Proposer or any other person in relation to the preparation or submission of RFPs;
- (b) by Proposer who entered into any agreement, arrangement or understanding with any other Proposer/s that the Proposer would refrain from proposing or as to the amount of any RFP to be submitted;
- (c) by Proposer who offered or agreed to pay or gave or did pay or give any sum of money, inducement or valuable consideration directly or indirectly to any person in respect of an act or omission, in relation to any other RFP any act or thing of the sort described above;
- (d) by Proposer with improper assistance of employees or ex-employees of TM, or any consultants or advisers to TM; and/or
- (e) by Proposer who communicated to any person other than TM the amount or approximate amount of Proposer's proposed RFP (except where such disclosure is made in confidence in order to obtain quotations necessary for the preparation of the RFP).

18. CONFIDENTIALITY

- 18.1. The Proposer shall treat as confidential any information whatsoever concerning the RFP and shall not divulge or disclose any information, oral or written, to a third party without the prior written approval of TM. The Proposer is required to execute and submit the Non-Disclosure Agreement as set out in **Appendix G of Part III** of the Invitation to RFP Documents.
- 18.2. All submitted Proposal by the Proposer will be treated as confidential and TM will not to use any Confidential Information (as defined in **Appendix G of Part III**) disclosed by the Proposer in its Proposal to the third parties or to its employees or management or its board of director or any of its affiliates except:
- i. to carry out discussions concerning, and the undertaking of, any business relationship between the two; or
 - ii. employees who are required to have the information in order to carry out the discussion of the contemplated business; or
 - iii. is in the possession of TM at the time of disclosure as shown by TM's files and records immediately prior to the time of disclosure; or
 - iv. prior or after the time of disclosure becomes part of the public knowledge or literature, not as a result of any inaction or action of TM; or
 - v. disclosed pursuant to a requirement or request of a Government agency, or is required by law, an order from court of competent jurisdiction, tribunal or regulatory body of competent jurisdiction but only to the extent so ordered; or
 - vi. approved by the Proposer, in writing, for release.

19. LOCAL CONTENT

- 19.1. TM takes a keen interest in encouraging active and genuine local and Bumiputera participation throughout the project. TM's philosophy on local and Bumiputera participation is based on fulfilling its strategic objectives to:
- (a) nurture capable sets of existing and new local and Bumiputera vendors and sub-vendors; and
 - (b) strengthen the quality and competitiveness of the local and Bumiputera vendors and sub-vendors.
- 19.2. In return TM expects the local and Bumiputera vendors to:
- (a) invest in appropriate infrastructure and manpower development to build up their capability in line with TM's requirements above;
 - (b) focus on 'value-add' and 'value creation' services through cost optimization, supply continuity, product and services innovation and process improvement vis-a-vis the current approach of simple 'participation';
 - (c) provide 'high quality' products and services to TM;
 - (d) undertake to develop their own competitive local and Bumiputera sub-vendors and to encourage local and Bumiputera content wherever possible; and

- (e) undertake a keen interest to acquire knowledge and technology transfer from the foreign principal and the subsequent transfer to their local and Bumiputera sub-vendors.

20. CONDITIONS PRECEDENT TO AN AWARD

- 20.1. Subject to further decision by TM, the following shall be the conditions precedent to an award of the contract:
 - (i) Performance Guarantee (Not Applicable)
 - (ii) Authorization Letter valid throughout Contract Period (where applicable)
 - (iii) Principal's Warranty (where applicable),
 - (iv) Letter of Undertaking (where applicable)
 - (v) Declaration of Independency and RPT,
 - (vi) Integrity Pledge (IP) by TM Business Partner,
 - (vii) Insurance (where Applicable), and
 - (viii) OSH Plan (where applicable)
- 20.2. If awarded, the formal Contract shall be signed within two (2) months from the date of Letter of Award. Failing which, TM reserves any or all of the following rights until the formal Contract is signed by the successful Proposer:
 - (a) Withhold the issuance of any new purchase order/work order,
 - (b) Withhold the payment for any work/service rendered, and/or
 - (c) Terminate the Letter of Award by written notice.

21. PRINCIPAL'S WARRANTY (IF APPLICABLE)

If the Proposer is not the Principal of the Equipment's and/or Software's and/or the Works's/Solution's, the Proposer shall lodge with TM a Principal's Warranty as per Appendix I of Part III of the Invitation to RFP Documents.

22. AGREEMENT

- 22.1. The successful Proposer(s) shall be required to enter into a formal Agreement with TM for the period as stipulated in the Terms and Conditions of Agreement. Orders would be placed by TM through Purchase Order(s) as and when required by TM.
- 22.2. Such Agreement shall be prepared by TM and all administrative and incidental costs arising from the completion of the contract documents shall be fully borne by the successful Proposer. The successful Proposer shall also bear the stamping cost.
- 23.3 Performance Guarantee (Not Applicable) and Insurance (where Applicable)
- 23.3.1 The successful Proposer shall at its own cost and expense lodge with TM a Performance Guarantee in the form of an "on demand", irrevocable and unconditional bank guarantee issued by a bank or financial institution licensed under the Financial Services Act 2013 or the Islamic Financial Services Act 2013.

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- 23.3.2 The successful Proposer shall at its own cost and expense lodge with TM the relevant insurances from an insurer or a company licensed under the Financial Services Act 2013 or a takaful operator licensed under the Islamic Finance Act 2013.
- 23.3.3 TM shall have the absolute right to reject the Performance Guarantee and any insurance which is not in compliance with the requirement as stipulated under Clause 23.3.1 and 23.3.2 of this Part II – Conditions of RFP and the successful Proposer shall be required to reproduce the correct insurances and/or Performance Guarantee as requested by TM.
- 23.3.4 The provision of the Performance Guarantee and insurance by the successful Proposer shall be a condition precedent to the commencement of Works under this RFP.

23. EQUIPMENT TYPE APPROVAL (NOT APPLICABLE)

- 23.1 The Proposer shall arrange with the relevant governmental and/or government-appointed authorities for his offered Equipment to undergo any type-approval process and do all things necessary, including the submission of the application and arrangement for testing, for purposes of obtaining any such type-approval. All costs incurred therefrom shall be borne by the Proposer. Such type-approval shall be obtained prior to any shipment by the Proposer to TM. All Equipment delivered to TM shall be marked with the Type Approved Label issued by the relevant governmental and/or government-appointed authorities.
- 23.2 The Proposer shall, at the request of TM, do all things necessary for purposes of obtaining the parallel type-approval for the Equipment in the name of TM from the relevant governmental and/or government appointed authorities (including but not limited to the preparation and submission of the relevant application). All costs incurred therefrom shall be borne by the Proposer.

24. SUPPLEMENTARY CONDITIONS

The Specifications and contractual conditions contained in the Invitation to RFP Documents define the basic requirements with regard to the RFP. TM reserves the right to amend the Specifications and conditions in order to correct errors, rectify omissions or discrepancies, or to reflect any change in TM's policy. Any amendment to the Specifications and contractual conditions shall be effected by the issuance of addendum and all Proposers shall be notified accordingly.

25. PRESENTATIONS AND DEMONSTRATIONS

- 25.1. The Proposer are required to give an oral presentation and demonstration (where applicable) of his proposal to TM. This will provide an opportunity for the Proposer to clarify or elaborate on his proposal but it shall in no way change the original proposal submission.
- 25.2. The Proposer are required to demonstrate and prove the capabilities and suitability of all proposed Equipment/Works/Services in an operational environment either in Malaysia or at an operational customer site. All Works/Services proposed must be presently operational at a customer location on the date of the demonstration. The Proposer will be asked to identify operational site(s) for all the proposed Equipment.

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- 25.3. The Proposer will be informed of the date, time and location of these presentations and demonstrations. Failure on the part of the Proposer in complying with this condition may render his proposal submission invalid.
- 25.4. The Proposer shall bear all expenses related to the abovementioned activities.

26. OPERATIONAL SITE AND/OR FACTORY VISIT (*WHERE APPLICABLE*)

TM reserves the right to conduct operational site and/or factory visit during the proposal evaluation, if requested by TM. The Proposer shall propose the location of the operational site and/or factory and make the necessary arrangement for TM's personnel or its accredited representative to inspect the Equipment at the actual manufacturing and/or working site(s). For the avoidance of doubt, the offered price for the Equipment shall exclude the costs incurred by the Proposer in order to comply with this Clause.

27. SAMPLES (*NOT APPLICABLE*)

28. RELATIONSHIP OF PARTIES

- 28.1. All Proposers are required to declare:
- (a) whether the Proposer is considered to be a "related party" to TM for purposes of Bursa Malaysia Berhad's Listing Requirements; and
 - (b) whether the Proposer is considered to have a "related party relationship" with TM for purposes of Malaysian Financial Reporting Standards 124 issued by the Malaysian Accounting Standards Board.
- 28.2. Proposers who do not have these relationships are required to declare that they do not have these relationships. If a Proposer has made an affirmative declaration in relation to either or both matters above, the Proposer is required to give details of the nature of its relationship with TM.
- 28.3. Proposers who make an affirmative declaration in relation to either or both matters above will NOT be discriminated from the other Proposers. The Proposer's declaration is merely for disclosure purposes under the provisions of Bursa Malaysia Berhad's Listing Requirements and Malaysian Financial Reporting Standards 124 issued by the Malaysian Accounting Standards Board.
- 28.4. Declaration of these types of relationship will have to be updated on a continuous basis throughout the entire RFP exercise until the Proposer has been informed that its participation in the RFP exercise has been discontinued or (if the Proposer is successful in the RFP exercise) until expiry of the term of the Agreement between TM and the successful Proposer arising from the RFP exercise or (if later) completion of all works to be performed under the Agreement.
- 28.5. Any false declaration (including declarations with material omission) by a Participant shall amount to a material breach by the Participant for which TM is entitled to forfeit any Tender Deposit, call on any Bank Guarantee for Tender Deposit, suspend or terminate any Agreement executed and/or claim damages and remedy under the law.

- 28.6. Proposers are put on notice that in the event of a false declaration (including declarations with material omission) by Proposers, TM may be in breach of Bursa Malaysia Berhad's Listing Requirements, Companies Act 2016 and other laws. Consequently, TM may be liable for punishment of fine, suspension or de-listing from Bursa Malaysia Berhad and the directors and officers of TM may also be liable for punishment of jail terms or fines. The Proposer shall be held fully responsible and shall indemnify TM, its directors and officers from and against all loss, damage (including but without limitation to any fines and penalties) arising from such false declaration by the Proposer.

29. RIGHTS OF TM

- 29.1. This Invitation to RFP documents do not commit TM to enter into any Agreement or similar undertaking with the Proposer or any other organization, and TM shall have the absolute right to reject or accept any bid or Proposal, or any part thereof (e.g. any component of any proposed Solution) or cancel any award, for any reason whatsoever, including but not limited to as a result of the procurement process, directive order, sanction imposed in Malaysia or outside Malaysia against the Proposer or the successful Proposer (including its parent and/or holding company and/or subsidiary), and to accept a bid other than the lowest bid, in its sole discretion, without any liability whatsoever to any person.
- 29.2. TM reserves the absolute right (i) to award to any parties without having a need to provide a reason or justification; and (ii) to enter into relationships with more than one Proposer (if more than one (1) Proposer, with a proportion which will be determined by TM at its absolute discretion), and to review and renegotiate unit prices of components on a yearly basis. In addition, TM reserves the absolute right not to proceed with any Proposer with respect to one or more categories of Equipment, Systems or Services, to suspend the Project or to issue a new RFP exercise for the Project that would supersede and replace this RFP exercise.
- 29.3. By submitting a Proposal, the Proposer agrees not to contest, appeal or challenge any decision made in connection with this RFP exercise and hereby waives any rights it may have to bring any claim, whether in damages or equity, against TM, its agents, advisers and employees, with respect to any matter arising out of any process associated with this RFP exercise.
- 29.4. Each Proposer shall make the following representations and warranty in its Proposal cover letter, the falsity of which might result in rejection of its Proposal by TM in its sole discretion:
"The information contained in this Proposal or any part thereof, including its exhibits, schedules, and other documents and instruments, delivered or to be delivered to TM, is true, accurate, and complete. This Proposal includes all information necessary to ensure that the statements therein do not in whole or in part mislead TM as to any material fact."
- 29.5. Any work result, whether successful or unsuccessful and this RFP, is to be the sole property of TM unless stated otherwise in the definitive Agreement.
- 29.6. TM reserves the right to terminate the procurement process at any time or stage without specifying any reasons and TM makes no commitment, expressed or implied, that the process will result in an Agreement being awarded or other business transaction being entered into with anyone. TM shall not be liable for any costs incurred by the Proposer as a result of such termination.
- 29.7. Proposers are prohibited from seeking any types of information in any form whatsoever from TM or TM's employees in relation to the RFP exercise and its outcomes beyond any information formally communicated by TM representatives through the RFP Documents, RFP briefings, RFP clarifications and negotiations.

- 29.8. TM reserves the right to disqualify the Proposer in the event TM has any reason to believe that the Proposer is in possession of any TM internal information related to the RFP exercise (including but not limited to the evaluation results).

30. ENVIRONMENTAL MATTERS, DANGEROUS GOODS, OCCUPATIONAL, SAFETY AND HEALTH

- 30.1. The Successful Proposer shall comply with all the environmental, dangerous goods, occupational safety and health, antiquities and fossils guidelines as set out in Letter of Award (if any).
- 30.2. If awarded and where applicable, within fourteen (14) days of the Letter of Award, the Proposer shall submit an OSH Plan to ensure that all activities required for the execution of Works and/or supply of Equipment are carried out in a safe manner and in compliance with the OSH Requirements.
- 30.3. The OSH Plan shall be subject to the approval of TM authorized personnel. Approval by the TM authorized personnel of the OSH Plan shall not relieve the Proposer of any of his obligations under the Agreement.

31. ADDITIONAL CLAUSE

31.1. Demerit System of TM

- 31.1.1. TM places great emphasis on quality and timely performance by the successful Proposer. It is to be noted that TM may, at its sole discretion, impose demerit points for any breaches of contract committed by the successful Proposer. In the event that the demerit points of a successful Proposer exceed a certain level, a show-cause letter may be issued requiring the successful Proposer to show cause why action should not be taken against him. The successful Proposer shall then be required to submit reasons in writing for the occurrence of the breaches of contract for evaluation by TM. In the absence of a reasonable explanation by the successful Proposer, TM may opt to take action against the successful Proposer under the Terms and Conditions of the Agreement.
- 31.1.2. The Demerit System employed by TM is in addition to its rights and remedies under the Terms and Conditions of Agreement or at law and not in derogation thereof.

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